



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 30, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202103998 regarding Police Officer Nicholas Caniglia, Tax No. 955783 (DADS No. 2022-27321), Police Officer Erick Estrada, Tax No. 967497 (DADS No. 2022-27322), and Police Officer Saul Rodriguez-Carrasco, Tax No. 967667 (DADS No. 2022-27323)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter in their entirety and has determined that the officers' actions do not rise to the level of actionable misconduct. In this case, the officers' were dispatched to a burglary in progress at a residential building. Upon arrival, officers met an individual who matched the suspect's description but claimed to have been locked out of the building. While investigating whether the individual was a burglar or a legitimate guest of the building, the officers went to the apartment where the individual claimed to be staying. The officers then entered the apartment, whose door was unlocked, and spoke with the tenants who verified that the individual was a lawful guest and not a burglar.

The officers lacked any nefarious intent by entering the apartment and did not enter in order to conduct a search for evidence or contraband. Instead, the officers merely wanted to verify the status of the individual who matched the description of a burglar.

Therefore, based on the foregoing, Police Officer Caniglia, Police Officer Estrada and Police Officer Rodriguez-Carrasco will receive no disciplinary action.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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